

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                               |                                                                                                 |                               |                                                       |                                    |                                 |
|-------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|-------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Jackie Manginelli                                            | Team:<br>Squad #10                                                                              | CCRB Case #:<br>202005299     | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                               |                                                                                                 |                               | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 11/15/2019 9:20 PM, Friday,<br>11/15/2019 9:50 PM | Location of Incident:<br>Northern Boulevard and Broadway and<br>the 114th Precinct stationhouse | Precinct:<br>114              | 18 Mo. SOL<br>5/15/2021                               | EO SOL<br>12/30/2021               |                                 |
| Date/Time CV Reported<br>Tue, 07/21/2020 4:00 PM                              | CV Reported At:<br>CCRB                                                                         | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Tue, 07/21/2020 4:00 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)             | Shield | TaxID  | Command |
|--------------------------------|--------|--------|---------|
| 1. POM Brian Faught            | 20460  | 959627 | 114 PCT |
| 2. POM Francis Roscigno        | 12149  | 957105 | 114 PCT |
| 3. POM Przemyslaw Jamiolkowski | 12868  | 935054 | 114 PCT |

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. POM Christian Valencia | 16922     | 942638 | 114 PCT  |
| 2. POM Andrew Taub        | 10668     | 952279 | 114 PCT  |
| 3. POM Kevin Riveiro      | 02581     | 965456 | 114 PCT  |
| 4. SGT Salisha Alirasul   | 05512     | 944981 | 114 PCT  |

| Officer(s)                    | Allegation                                                                                                                                                           | Investigator Recommendation |
|-------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A.POM Brian Faught            | Abuse: In the vicinity of Northern Boulevard and Broadway in Queens, Police Officer Brian Faught stopped the vehicle in which § 87(2)(b) was an occupant.            |                             |
| B.POM Przemyslaw Jamiolkowski | Abuse: In the vicinity of Northern Boulevard and Broadway in Queens, Police Officer Przemyslaw Jamiolkowski stopped the vehicle in which § 87(2)(b) was an occupant. |                             |
| C.POM Brian Faught            | Abuse: In the vicinity of Northern Boulevard and Broadway in Queens, Police Officer Brian Faught failed to obtain language interpretation services for § 87(2)(b).   |                             |
| D.POM Francis Roscigno        | Abuse: In the vicinity of Northern Boulevard and Broadway in Queens, Police Officer Francis Roscigno questioned § 87(2)(b).                                          |                             |
| E.POM Brian Faught            | Abuse: At the 114th Precinct stationhouse in Queens, Police Officer Brian Faught searched the vehicle in which § 87(2)(b) was an occupant.                           |                             |

### Case Summary

On July 21, 2020, § 87(2)(b) made the following complaint with the CCRB over the phone during his interview for CCRB Case No. § 87(2)(b).

On November 15, 2019, at approximately 9:20 p.m., in the vicinity of Northern Boulevard and Broadway in Queens, § 87(2)(b) and § 87(2)(b) were pulled over by Police Officer Brian Faught and Police Officer Przemyslaw Jamiolkowski, both of the 114<sup>th</sup> Precinct (**Allegations A and B: Abuse of Authority: Vehicle stop:** § 87(2)(g)). PO Faught asked § 87(2)(b) why he took a photograph on his cellphone while he was driving, and § 87(2)(b) explained he was using a flashlight in his vehicle. While speaking with § 87(2)(b) PO Faught allegedly did not obtain language interpretation services for § 87(2)(b) (**Allegation C: Abuse of Authority: Failed to obtain language interpretation:** § 87(2)(g)).

PO Faught asked for § 87(2)(b)'s license and registration. § 87(2)(b) opened the glovebox and PO Faught noticed a police placard in plain sight in the glove compartment. PO Faught asked to see the police placard and asked § 87(2)(b) if he was a police officer. § 87(2)(b) said that he was not and that he used the placard to get out of paying parking tickets.

PO Faught and PO Jamiolkowski placed § 87(2)(b) under arrest. PO Jamiolkowski noticed that there were police lights inside of § 87(2)(b)'s vehicle. PO Faught and PO Jamiolkowski called for additional units and Police Officer Andrew Taub, Police Officer Luke Dunatov, Police Officer Francis Roscigno, Police Officer Kevin Riveiro, and Sergeant Salisha Alirasul arrived. PO Roscigno asked § 87(2)(b) for his contact information and to see his identification (**Allegation D: Abuse of Authority: Question:** § 87(2)(g)). PO Dunatov brought § 87(2)(b)'s vehicle back to the stationhouse.

When they arrived at the 114<sup>th</sup> Precinct stationhouse, at approximately 9:50 p.m., PO Faught searched § 87(2)(b)'s vehicle for evidence of police impersonation (**Allegation E: Abuse of Authority: Vehicle search:** § 87(2)(b), § 87(2)(g)). PO Faught called the Police Impersonation Unit (PIU) to investigate further and the PIU determined that § 87(2)(b) was not impersonating a police officer. § 87(2)(b) was released with a summons for § 87(2)(b).

Body-worn camera footage was obtained from PO Faught, Sergeant Jamiolkowski, PO Taub, PO Dunatov, PO Roscigno, PO Riveiro, and Sergeant Alirasul (**Board Review 01 and summaries Board Reviews 02-08**).

### Findings and Recommendations

**Allegation A: Abuse of Authority: In the vicinity of Northern Boulevard and Broadway in Queens, Police Officer Brian Faught stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation B: Abuse of Authority: In the vicinity of Northern Boulevard and Broadway in Queens, Police Officer Przemyslaw Jamiolkowski stopped the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(b) was interviewed over the phone using the language line on July 27, 2020 (**Board Review 09**). § 87(2)(b) did not cooperate with providing a statement to the CCRB. PO Faught was interviewed remotely over Microsoft Teams on January 7, 2021 (**Board Review 10**).

§ 87(2)(b) stated that he was picking up dinner with his co-worker § 87(2)(b) when they were pulled over by a marked police vehicle. PO Faught came to his window and told him that his

windows were tinted and that they were going to have to search him and the car. § 87(2)(b)'s back windshield was tinted and was in regulation with the New York City tint laws. His other windows were not tinted.

PO Faught stated that he was in the driver's seat of his parked police vehicle with PO Jamiolkowski. PO Faught was parked perpendicular in a parking lot area on the westbound side of traffic facing south. There were two lanes on Northern Boulevard running both eastbound and westbound. PO Faught observed § 87(2)(b) driving eastbound on Northern Boulevard approaching 54<sup>th</sup> Street in the far-right lane. While driving, § 87(2)(b) appeared to hold up an object that PO Faught believed to be a cellphone with both of his hands and saw a flashlight in his direction. He thought that § 87(2)(b) took a photograph while he was driving and did not have either of his hands on the steering wheel. PO Faught was approximately six car lengths away from § 87(2)(b) when he observed this happen and decided to pull § 87(2)(b) over to investigate further.

PO Faught's body-worn camera footage captured this incident in its entirety (**Board Review 07 and 11**). At 01:00, he exits his vehicle and approaches § 87(2)(b)'s vehicle. At 01:16, he asks § 87(2)(b) to roll down his back window and § 87(2)(b) does. PO Faught tells § 87(2)(b) that he saw him driving and taking a photo on his phone. § 87(2)(b) explains that he was talking to his boss on the phone and demonstrates how he flashed a flashlight towards his phone in the vehicle. There is no discussion of tinted windows in the entirety of the body-worn camera footage.

New York Vehicle and Traffic Law 1225-C states that no person shall operate a motor vehicle upon a public highway while using a mobile telephone to engage in a call while such vehicle is in motion. An operator of any motor vehicle who holds a mobile telephone to, or in the immediate proximity of, his or her ear while such vehicle is in motion is presumed to be engaging in a call (**Board Review 12**).

§ 87(2)(b), § 87(2)(g)

**Allegation C: Abuse of Authority: In the vicinity of Northern Boulevard and Broadway in Queens, Police Officer Brian Faught failed to obtain language interpretation services for**

§ 87(2)(b) :

§ 87(2)(b) stated that the officers did not obtain Spanish language interpretation services for him when they pulled him over. This allegation was made in an additional call to § 87(2)(b) clarify details of the incident (**Board Review 13**).

PO Faught stated that he did not think there was any difficulty communicating with § 87(2)(b) and that he perfectly understood him. § 87(2)(b) spoke with PO Faught in English in full sentences. It seemed that § 87(2)(b) understood the directions that PO Faught was giving him because he was complying with those directions. PO Faught did not remember if § 87(2)(b) indicated to him that he only spoke Spanish. PO Faught did not speak Spanish. If PO Faught was interacting with someone who primarily spoke Spanish or only spoke Spanish, he would get a Spanish speaking officer or someone from the language line. § 87(2)(b) did not indicate to PO Faught that he did not understand what PO Faught was saying. When PO Faught gave § 87(2)(b) the order to give him his license and registration, he responded by giving it to him. He did not

remember if § 87(2)(b) asked them for a Spanish speaking officer. There were no additional reasons why PO Faught did not provide § 87(2)(b) with language interpretation services.

PO Faught's body-worn camera footage captured this incident in its entirety (**Board Review 07, 11**). At 01:16, he asks § 87(2)(b) to roll down his back window and he does. He tells § 87(2)(b) that he saw him driving and that he took a photo on his phone. § 87(2)(b) explains that he was talking to his boss on the phone. PO Faught asks him for his license and registration. § 87(2)(b) gets his license and registration. At 02:00, PO Faught asks § 87(2)(b) what the placard in his car is. PO Faught asks to see it and § 87(2)(b) gives it to him. At 02:15, PO Faught asks whose car it is. § 87(2)(b) says that it is a passenger cab. § 87(2)(b) hands him his documentation. At 02:50, PO Faught says, "Who is this guy?" § 87(2)(b) hands PO Faught his phone. PO Faught asks him where he works. PO Faught tells § 87(2)(b) to hang up with him. § 87(2)(b) hangs up. At 20:40, § 87(2)(b) is placed into handcuffs and is under arrest. As they are placing § 87(2)(b) in the police vehicle to drive back to the stationhouse, § 87(2)(b) asks for someone to speak Spanish. PO Faught says that they have someone who speaks Spanish at the stationhouse. They drive back to the stationhouse and at 35:40, PO Faught calls over an officer named, "Ajax" to translate in Spanish for § 87(2)(b).

According to Patrol Guide Procedure 212-90, a "Limited English Proficient" person (LEP) refers to those individuals whose primary language is not English and who are unable to effectively read, write, speak, or understand English. When an officer encounters an LEP, and the services of an interpreter are necessary, the officer must determine what language the person speaks, and if a bilingual member of service is available to interpret, they will interpret for the LEP. If a bilingual member of service is not available, and a member of the public is, then the officer must determine whether the individual is willing to interpret and whether their use is appropriate. If a bilingual member of the public is not available, then the officer must utilize their department issued cellphone and call the language line for interpretation services (**Board Review 14**).

§ 87(2)(b), § 87(2)(g)

**Allegation D: Abuse of Authority: In the vicinity of Northern Boulevard and Broadway in Queens, Police Officer Francis Roscigno questioned § 87(2)(b)**

§ 87(2)(b) stated that an officer asked § 87(2)(b) questions and told him that he was free to go. § 87(2)(b) did not know what these questions were.

PO Roscigno's body-worn camera captures this portion of the incident in its entirety (**Board Review 04 and 26**). At 02:17, PO Roscigno asks if the passenger is free to leave and PO Faught says that he is and asks PO Roscigno to get the passenger's name. At 02:23, PO Roscigno asks for § 87(2)(b)'s name, date of birth, and address. § 87(2)(b) does not respond to the officer. He asks for § 87(2)(b)'s ID. § 87(2)(b) hands the officer his passport. At 03:42, PO Roscigno notes § 87(2)(b)'s information in his memo book. Another officer asks someone else to drive back the car to the stationhouse. PO Roscigno gives § 87(2)(b) his passport back. At 04:45, he asks for § 87(2)(b)'s phone number and someone tells § 87(2)(b) something in Spanish. § 87(2)(b) does not respond to PO Roscigno.

People v. De Bour, 40 N.Y. 2d 210 (1976), the minimal intrusion of approaching to request information is permissible when there is some objective credible reason for that interference not necessarily indicative of criminality. (**Board Review 15**).

§ 87(2)(b), § 87(2)(g)

**Allegation E: Abuse of Authority: In the vicinity of the 114<sup>th</sup> Precinct stationhouse in Queens, Police Officer Brian Faught searched the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(b) stated that when he got his car from the stationhouse, he realized that it had been searched because the doors and the trunk of the car were open. He did not know which officer searched his car at the stationhouse, however, PO Faught handed him his keys back.

PO Faught stated that he contacted the police impersonation unit in the NYPD and explained to them what happened. They asked PO Faught to take photographs of § 87(2)(b)'s police lights in his vehicle on his phone. PO Faught then searched § 87(2)(b)'s vehicle at the stationhouse because he wanted to look for other evidence of police impersonation and to see if the police lights inside of § 87(2)(b)'s vehicle functioned. He searched the dashboard area and found a switch for the police lights. There was nothing else in the vehicle that indicated that § 87(2)(b) was impersonating the police. The police placard and the lights were vouchered.

Body-worn camera footage received for this case did not capture PO Faught searching § 87(2)(b)'s vehicle (**Board Review 01**).

§ 87(2)(b) received C-Summons number § 87(2)(b) § 87(2)(b)  
§ 87(2)(b).

The investigation obtained property vouchers for § 87(2)(b) completed by PO Faught indicating that he vouchered a police vehicle identification placard and red and blue flashing emergency light bars (**Board Review 17**).

It was undisputed that PO Faught searched § 87(2)(b)'s vehicle at the stationhouse to look for evidence of police impersonation.

According to New York Administrative Code 14-108(6), a person is guilty of unlawful use or possession of official police cards when any person who without permission of the commissioner has in his or her custody or possession any of the cards hereinbefore, or any copy or reproduction thereof (**Board Review 18**).

According to New York Penal Law 190.25, a person is guilty of criminal impersonation in the second degree when they (1) impersonate another and does an act in such an assumed character with intent to obtain a benefit or to injure or defraud another; or (2) pretends to be a representative of some person or organization and does an act in such pretended capacity with intent to obtain a benefit or to injure or defraud another; or (3) (a) pretend to be a public servant, or wears or displays without authority any uniform, badge, insignia, or facsimile thereof by which such public servant is lawfully distinguished or falsely expresses by their words or actions that they are a public servant or is acting with approval or authority of a public agency or department; and (b) so act with the intent

to induce another to submit to such pretended official authority, to solicit funds, or to otherwise cause another to act in reliance upon that pretense (**Board Review 19**).

People v. Belton, 55 N.Y. 2d 49 (1982), found that a valid arrest for a crime authorizes a warrantless search- for a reasonable time and to a reasonable extent—of a vehicle and of a closed container visible in the passenger compartment of the vehicle which the arrested person is driving or in which he is a passenger when the circumstances give reason to believe that the vehicle or its visible contents may be related to the crime for which the arrest is being made (as possibly containing contraband or as having been used in the commission of the crime) or there is reason to believe that a weapon may be discovered or access to means of escape thwarted (**Board Review 20**).

§ 87(2)(b), § 87(2)(g)  
[REDACTED]

### Civilian and Officer CCRB Histories

- This is the second CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**Board Review 21 and 22**).
  - § 87(2)(b) [REDACTED]
- PO Faught has been a member of service for five years and has been a subject in two previous CCRB complaints and four previous allegations. § 87(2)(g) [REDACTED]
- PO Jamiolkowski has been a member of service for sixteen years and has been a subject in three previous CCRB complaints and seven previous allegations. § 87(2)(g) [REDACTED]
- PO Roscigno has been a member of service for six years and this is the first CCRB complaint for which he has been a subject.

### Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On October 19, 2020, a request for any Notice of Claim was submitted to the New York City's Comptroller Officer. No notice of claim was located in relation to this complaint for either § 87(2)(b) § 87(2)(b) or § 87(2)(b) (**Board Review 23**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 10

|               |                          |                          |                   |
|---------------|--------------------------|--------------------------|-------------------|
| Investigator: | <u>Jackie Manginelli</u> | <u>Jackie Manginelli</u> | <u>01/28/2021</u> |
|               | Signature                | Print Title & Name       | Date              |

|               |                   |                      |                  |
|---------------|-------------------|----------------------|------------------|
| Squad Leader: | <u>Eric Rigie</u> | <u>IM Eric Rigie</u> | <u>1/28/2021</u> |
|               | Signature         | Print Title & Name   | Date             |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |